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McCurtain County Sheriff Kevin Clardy

Defendants, along with an award of all other relief (whether legal, equitable, or both) to which Plaintiff may be entitled and/or that the Court deems just and proper.

9. Defendant Kevin Clardy is a resident of McCurtain County, Oklahoma. Since 2016, Clardy has held the position of McCurtain County Sheriff.

10. At all times relevant to the claims asserted herein, Clardy was acting under color of state law.

11. Plaintiff's claims for relief in this Complaint are brought against Clardy in his official capacity as McCurtain County Sheriff.

12. "A claim against a government actor in his official capacity is essentially another way of pleading an action against the county … he represents." *Revilla v. Glanz*, 7 F.Supp.3d 1207, 1217 (N.D.Okla. 2014).

13. Thus, naming McCurtain County Sheriff Kevin Clardy in his official capacity in this action is the functional equivalent of suing McCurtain County. *Id.*; *Moran v. Unknown Nurse #1*, 2015 WL 9593622 *1 (N.D.Okla.) (holding "a suit against the sheriff in his official capacity is the same as naming the county"); *Lynch v. Bd. of County Comm'rs of Muskogee Co.*, U.S. Dist. Ct. (E.D.Okla.) Case No. 16-CV-247-JHP, Dkt. #2, p. 3 (in which the Board of County Commissioners of Muskogee County expressly conceded that the Muskogee County Sheriff "does not enjoy a separate legal existence from Muskogee County").

14. McCurtain County "may be held liable for an act it has officially sanctioned or for the actions of an official with final policymaking authority." *Revilla v. Glanz*, 7 F.Supp.3d 1207, 1217 (N.D.Okla. 2014). *See also Lynch v. Bd. of County Comm'rs of Muskogee Co.*, U.S. Dist. Ct. (E.D.Okla.) Case No. 16-CV-247-JHP, Dkt. #60, p. 3.

15. As McCurtain County Sheriff, Clardy is a county "official with final policymaking authority." *See id.* at 1218; *Randle v. City of Aurora*, 69 F.3d 441, 448 (10th Cir. 1995).

16. Additionally, Clardy serves as Chairman of the McCurtain County Jail Trust Board of Trustees and, according to the official McCurtain County web page, "[h]as [the] power

Respectfully submitted:

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